

Stereo. HC JD A 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT

W.P. No. 2068 of 2025

Aziz Khatoon and another Versus The State and ten others.

J U D G M E N T

Date of hearing	12.02.2026
Petitioners by:	Malik Taj Muhammad Dhakku, Advocate.
State by:-	Mr. Zafar Iqbal Awan, Additional Advocate General, Punjab.
Respondents No.4 and 11 by:-	Syed Zeeshan Haider, Advocate.

SADIQ MAHMUD KHURRAM, J.:- Through this petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the judgment dated 24.02.2025, passed by the learned Additional Sessions Judge, Liaquatpur, whereby the accused (respondents No. 4 to 11) facing the trial of the case instituted upon the private complaint titled “*Aziz Khatoool and another Vs. Ghulam Yaseen and seven others*” lodged in respect of an offence under section 3 of the Illegal Dispossession Act, 2005, were acquitted from the charge by the learned trial court, has been assailed.

2. The case of the petitioners/complainants against the accused/respondents No. 4 to 11 was that the complainant namely Aziz Khatoon was the lawful owner in possession of 3-Kanals situated in Killa Nos. 1 and 10, Rectangle No.222/9,

Khata No.266/267, Khatooni No. 277, situated at Mouza Ghafoor Abad, Tehsil Liaqatpur, District Rahim Yar Khan, however, on 07.12.2022 at 10:00 a.m. the respondents No.4 to 11 illegally dispossessed the petitioner namely Aziz Khatoon from the said three Kanals of land.

3. After the lodging of the private complaint and holding of inquiry, the learned Additional Sessions Judge, Liaqatpur, summoned the accused named in the private complaint titled “*Aziz Khatoon and another Vs. Ghulam Yaseen and seven others*” as lodged by the petitioners. After the supply of copies of the statements of the witnesses, the respondent No.4 to 11 were charged by the learned trial court, who denied the same and claimed the trial. During the course of trial, the complainants got Ahmad Bakhsh (PW-1) and Allah Ditta (PW-2) examined in support of the complaint, however, Aziz Khatoon did not appear as a witness. The learned trial court also recorded the statements of Allah Bachaya, Patwari (CW-1) and Mansoor Khan, Inspector (CW-2) as court witnesses. On 06.09.2023, the complainants closed the evidence after tendering in evidence a copy of the private complaint (Exh.PA), a copy of the record of rights (Exh.PB) and a copy of the report as submitted by the witness (Exh.PC) and again on 15.11.2023, closed the complainants’ evidence after tendering in evidence documents (Exh.PD and Exh.PE). After the closure of the complainants’ evidence, the learned trial court examined the accused under section 342 Cr.P.C. and in answer to the question *why this case against you and why the PWs have deposed against you*, the accused denied

the charge and claimed that they were not involved in the dispossession of Aziz Khatoon from any parcel of land and they had been falsely involved in the case. The accused did not get themselves examined under section 340(2) Cr.P.C., however, the respondent namely Ghulam Yaseen produced documents (Exh.DA to Exh.DD and Mark-A and Mark-B) as evidence in defence. The learned trial court, after taking into consideration the entire material brought on the record, came to the conclusion that the complainant of the case had failed to establish its case against the respondents No. 4 to 11 beyond a reasonable doubt. Accordingly, the respondents No. 4 to 11 were acquitted of the charge vide judgment dated 24.02.2025, passed by the learned trial court, hence, the instant petition.

4. The learned counsel for the petitioners contended that the judgment dated 24.02.2025 passed by the learned Additional Sessions Judge, Liaquatpur, District Rahimyar Khan, whereby respondents No.4 to 11 were acquitted of the charge in the case instituted upon the private complaint as lodged by the petitioners, was liable to be set-aside being against the facts and the law; the learned Additional Sessions Judge misconstrued the facts of the case when he proceeded to hold that respondents No.4 to 11 were the joint owners of the property in dispute as on 07.12.2022 but when the incident took place, none of the respondents No.4 to 11 were the owners of any land in Khata No.266/267 Khatooni No.277 Rectangle No.222/9; that the sole reason mentioned by the learned Additional Sessions Judge for the acquittal of respondents No.4 to 11 was that no proceeding under the Illegal

Dispossession Act, 2005 could be continued as against the co-owners of the property, however, the learned Additional Sessions Judge did not appreciate the fact that respondents No.4 to 11 were not the co-owners.

5. The learned counsel for the respondents No.4 to 11 namely submitted that as the complainants failed to prove the case, therefore, the respondents No.4 to 11 were rightly ordered to be acquitted by the learned trial court.

6. The learned Additional Advocate General, Punjab has submitted that it was a private complaint hence the State did not prosecute the matter.

7. I have heard the learned counsel appearing on behalf of the petitioners, the learned counsel for the respondents No.4 to 11, the learned Additional Advocate General, Punjab and have gone through the record of the case with their able assistance.

8. I have gone through the impugned judgment and record available and have arrived at a conclusion that it cannot be said that the conclusions drawn by the learned Additional Sessions Judge, while acquitting the respondents No.4 to 11 were based on misreading of evidence or non-reading of evidence or were presumptive in any manner. The very first flaw obvious from the perusal of the case of complainants is that the petitioner No.1 namely Aziz Khatoon, herself, despite filing the private complaint, opted not to appear as a witness before the learned trial court. There is no reason as to why she herself never appeared before the learned trial court as a witness. Even the learned counsel for the petitioners cannot explain as to why

petitioner No.1 namely Aziz Khatoon, never appeared as a witness during the course of the trial, though the instant writ petition has also been filed by the petitioner No.1 namely Aziz Khatoon, herself. This failure of the petitioner No.1 namely Aziz Khatoon, to appear before the learned trial court herself and give evidence, though indeed it was she who on 07.12.2022, was dispossessed from her own property, has a fatal consequences upon the case of the complainant of the case. In this regard, the provisions of Article 129, illustration (g) of the Qanun-e-Shahadat Order, 1984, are very much applicable which provide that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it. This failure of the petitioner/complainant namely Aziz Khatoon, to appear as a witness makes the provisions of Article 129, illustration (g) of the Qanun-e-Shahadat Order, 1984, applicable and the learned trial court was right in concluding that if Aziz Khatoon had appeared, she would not have supported the complainant's case and it was for that reason that Aziz Khatoon was not produced as a witness. It is beyond explanation and beyond reason as to why the complainant/petitioner namely Aziz Khatoon herself never appeared before the learned trial court to support the charge against the accused. This fact alone is sufficient to conclude that the case of the complainant was not proved beyond any shadow of doubt.

9. Another aspect identified by the learned trial court for passing of judgment entailing the acquittal of the respondents No.4 to 11, was that the land from which the petitioner No.1

namely Aziz Khatoon, was dispossessed on 07.12.2022, was originally owned by her father namely Laal son of Mithan and after the death of Laal son of Mithan, as the petitioner No.1 namely Aziz Khatoon, was his only child, therefore, the land in the name of Laal son of Mithan, devolved not upon the petitioner Aziz Khatoon, the daughter of Laal son of Mithan, but also upon **Sehat Khatoon**, widow of Laal (deceased) ,**Bakhtan Bibi** (mother of the respondents No.4 to 6), the sister of Laal (deceased) and **Faiz Bakhsh**, the brother of Laal son of Mithan (deceased), and it is also a fact that to settle the title of herself, Aziz Khatoon, filed a declaratory suit with regard to the land in the name of her father namely Laal son of Mithan (deceased) and during the trial of the said suit, a settlement was arrived at between the petitioner No.1 namely Aziz Khatoon, Bakhtan, the sister of her deceased father and Faiz Bakhsh, the brother of her deceased father and according to which settlement, out of total legacy, 8 Kanals were declared as the share of the petitioner No.1 namely Aziz Khatoon, whereas the land measuring 1-K, 2-M, was declared as the share of Bakhtan, the mother of the respondents No.4 to 6 and remaining land of Laal (deceased) was declared as the share of Faiz Bakhsh, vide judgment dated 12.07.2021, passed by the learned Civil Judge, Liaquatpur. It is also a fact that as no partition of the land of Laal son of Mithan (deceased) had taken place, however a declaration suit was filed and a decree was passed and thereafter, the petitioner herself submitted an application for the partition of the land which was in the name of her father but that application was decided on

20.07.2023, vide order passed by the Naib Tehsildar/Assistant Collector, Grade-I, Qanungoi, Sidhuwali, Tehsil Liaqatpur, District Rahim Yar Khan i.e. after the occurrence had taken place on **07.12.2022**, proving the fact that when the incident had taken place on 07.12.2022, *no partition of the land as previously in the name of Laal son of Mithan (deceased), the father of the petitioner, the brother of Bakhtan and Faiz Bakhsh*, had taken place and it was only on **20.07.2023** that the said partition was made by the order of the Naib Tehsildar/Assistant Collector, Grade-I, Qanungoi, Sidhuwali, Tehsil Liaqatpur, District Rahim Yar Khan, as is proved through the document (Exh.DA), being certified copy of the said order. In this manner, when it is the case of the petitioner No.1 namely Aziz Khatoon, herself that her application seeking partition of the land in the name of her deceased father was decided on **20.07.2023**, then it cannot be said that the land of Laal son of Mithan (deceased) father of the petitioner, had been partitioned on 07.12.2022, i.e. the date of incident and at that time only judgment and decree had been passed by the learned civil court in the suit as filed by the petitioner which judgment had been passed on 12.07.2021 (Exh.DC) and according to which the land of Laal son of Mithan (deceased), the father of Aziz Khatoon, had been devolved upon not only the petitioner but it had also been devolved upon Bakhtan Mai, the mother of the respondents No.4 to 6, and others. As the identity of the share of the land which was identified as the share of Mst. Bakhtan Bibi, the mother of the respondents No.4 to 6 being 1-Kanal and 2-Marlas, was yet to be made, which

subsequently was identified through the order dated 20.07.2023, (Exh.DA), therefore, it could not have been held by the learned trial court that the petitioner was in exclusive possession of the land situated in 3-Kanals situated in Killa Nos. 1 and 10, Rectangle No.222/9, *Khata No.266/267, Khatooni No. 277*, situated at *Mouza Ghafoor Abad*, Tehsil Liaqatpur, District Rahim Yar Khan and therefore, the accused could not have been convicted and sentenced for the commission of the offence made punishable under section 3 of the Illegal Dispossession Act, 2005.

10. For all the above flaws of the case of the complainant, the impugned judgment of the learned trial court cannot be said to be misconceived or perverse in any manner. It is important to note that according to the established principle of the criminal administration of justice, once an acquittal is recorded in favour of the accused facing a criminal charge, he enjoys a double presumption of innocence, therefore, the court competent to interfere in the acquittal order should be slow in converting the same into conviction, unless and until the said order is patently illegal, shocking, based on misreading and non-reading of the record or perverse. The said principle has been enunciated by the august Supreme Court of Pakistan in the judgment reported as “Ghulam Sikandar and another Versus Mamaraz Khan and Others” (P L D 1985 Supreme Court 11) wherein it has been held as under:

“The Court would not interfere with acquittal merely because on re-appraisal of the evidence it comes to the conclusion different from that of the Court acquitting the

accused provided both the conclusions are reasonably possible. If however, the conclusion reached by that Court was such that no reasonable person would conceivably reach the same and was impossible then this Court would interfere in exceptional cases on overwhelming proof resulting in conclusion and irresistible conclusion; and that too with a view only to avoid grave miscarriage of justice and for no other purpose. The important test visualised in these cases, in this behalf was that the finding sought to be interfered with, after scrutiny under the foregoing searching light, should be found wholly as artificial, shocking and ridiculous.”

Reliance is placed on the case of “Muhammad Inayat Versus The State” (1998 SCMR 1854), wherein it has been held as under:

“The judgment of acquittal qua Muhammad Yousaf, Muhammad Saeed and Muhammad Nawaz cannot, in the given situation, be termed as perverse or foolish inasmuch as the view having been taken by the High Court can possibly be taken for acquitting them in the peculiar facts and circumstances of this case. It cannot be said that the impugned judgment of the High Court acquitting Muhammad Yousaf and two others is fanciful, artificial, shocking or ridiculous. It is based on convincing reasons”

The august Supreme Court of Pakistan in the case of “Mst. Sughran Begum and another Vs. Qaiser Pervez and others” (2015 SCMR 1142) has held as under:

“On acquittal, an accused person earns twofold innocence particularly, in the case when there are concurrent findings to that effect by the trial Court and the Court of First Appeal (High Court), is the bedrock principle of justice. In a case of acquittal, the standard and principle of appreciation of evidence is entirely different from that in a case of conviction. Unless the concurrent findings of the two Courts below are found perverse, fanciful, arbitrary and are based on misreading and non-reading of material evidence causing miscarriage of justice, the Supreme Court would not lightly disturb the same because on reappraisal, another view might be possible therefore, sanctity is attached under the law to such concurrent findings in ordinary course.”

11. In view of the above, the conclusions arrived at by the learned trial court, have been found by this Court to be such that

any court could have arrived at the same upon a fair assessment of the evidence available on the record. In these circumstances, this Court finds no occasion of interference with the impugned judgment of acquittal passed by the learned trial court in respect of the respondents No. 4 to 11, hence, the instant petition, being devoid of any merit, is **dismissed** and the notices issued to the respondents No.4 to 11 are **recalled**.

13. Obviously, the observations in this order are related to the trial of the case regarding the commission of an offence made punishable under section 3 of the Illegal Dispossession Act, 2005 and shall have no relevancy during the proceedings related to the decision of the civil claims between the parties which claims shall be decided by the civil court having exclusive jurisdiction to decide the same under section 9 of the Code of Civil Procedure, 1908.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for reporting

Judge